



CHAPTER clxix.

An Act to confirm a Provisional Order of the Local Government Board for Ireland relating to the Harbour of Courtown in the County of Wexford. A.D. 1904.

[15th August 1904.]

WHEREAS the Local Government Board for Ireland have made the Provisional Order set forth in the schedule hereto under the Local Government (Ireland) Act 1898 :

61 & 62 Vict.
c. 37.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule hereto is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Order Confirmation (No. 5) Act 1904. Short title.

[Ch. clxix.] *Local Government Board (Ireland)* [4 EDW. 7.]
Provisional Order Confirmation (No. 5) Act, 1904.

A.D. 1904.

SCHEDULE.

COUNTY OF WEXFORD.

Wexford. Provisional Order to transfer the business of the Commissioners of the Harbour of Courtown to the County Council of Wexford.

5 Geo. 4.
c. cxxii.

11 Geo. 4 and
1 Will. 4.
c. cxx.

WHEREAS the commissioners of the harbour of Courtown (in this Order referred to as "the commissioners") are a body corporate for the purpose of carrying into execution an Act passed in the fifth year of the reign of His Majesty King George the Fourth intituled "An Act for completing the Port or Harbour of Courtown at Brenogue Head in the County of Wexford" as amended by an Act passed in the eleventh year of the reign of His said Majesty (which Acts are referred to in this Order as "the Harbour Acts"):

And whereas the commissioners have consented that We the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") should make an Order under section 20 of the Local Government (Ireland) Act 1898 (in this Order referred to as "the Act of 1898") for transferring to the county council of Wexford (in this Order referred to as "the county council") the business of the commissioners arising in their county under the Harbour Acts:

And whereas the business of the commissioners under the Harbour Acts arises solely within the county of Wexford:

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Act of 1898 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:—

1. There shall be transferred to the county council the business arising in their county of the commissioners under the Harbour Acts.

2. All property rights and liabilities of the commissioners in connexion with the harbour shall pass to and vest in the county council save and except any liability in respect of repayments of instalments of loans guaranteed by the Right Honourable the Earl of Courtown.

3. The costs and expenses of the county council and the Local Government Board incurred in respect of the application for preparation making and

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confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

A.D. 1904.

Wexford.

4. This Order^s may be cited as the Courtown Harbour Order 1904.

Given under our seal of office this Nineteenth day of July One thousand nine hundred and four.

(L.S.)

H. A. ROBINSON.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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